CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
SPECIAL COMMISSION MEETING
January 11, 2010
12:00 p.m.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. ROLL CALL:

The City Commission of the City of Opa-locka, Miami-Dade County, Florida, met in a special session on Monday, January 11, 2010 at 12:01 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida. The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, Interim City Attorney Joseph S. Geller and City Clerk Deborah S. Irby. Commissioner Holmes arrived at 12:05 p.m. and Commissioner Rose Tydus was not present due to a previous engagement.

2. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

3. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

4. INTERVIEWS FOR CITY MANAGER:

Mayor Kelley stated for the record that interviews will be held for the City Manager position and passed out a copy of the interview format.

In terms of the sheet being passed out to the audience which gives the person an opportunity to right down a question for the chair to ask, Attorney Geller suggested that Mayor Kelley reserve the right not to ask any question that is improper in some way and would violate a person's right.

Mayor Kelley advised that he would look at the questions first to make sure they are deemed appropriate.

Commissioner Johnson reminded the Commission that all applicants must be asked the same questions.

Manager Finnie advised the Commission that there are a number of pressing issues he has to work on; therefore, he asked to be excused from the meeting. Prior to being excused, he stated that the city is planning a commencement demolition date on Thursday, January 14, 2010 @ 11:00 a.m. for the water plant and the information would be forthcoming.

Mayor Kelley read the candidate interview format as follows:

- Each candidate will receive a maximum 2 minutes for any opening remarks.
- Each commissioner will have a maximum of 5 minutes to question each candidate.
- If the audience has a question they would like to have asked, write it down and give it to the clerk, and the chair will ask. The chair will review the questions from the audience to deem they are appropriate, otherwise he would not entertain them.
- After questioning, the candidate will be given a 1 minute closing statement.

The City Commission conducted interviews for the position of City Manager for the City of Opa-locka as follows:

Sometime during the interview with Octavian Spanner, Commissioner Holmes expressed his concerns with not having the full Commission present at the meeting just in case there should be a tie vote. In addition to that, the Commissioner who is not present would not hear what the candidates are saying. He suggested that the Commission wait until they have a full Commission or decide on how they will handle the vote should there be a tie vote.

Mayor Kelley explained that Commissioner Tydus sent a message through the City Clerk's Office that she was not going to be present due to her attendance at another meeting in which she thought she would be out in time. In the event that there is a tie, then the Commission would have to postpone the meeting until the full Commission is present. Since the meeting was properly noticed and posted, the Commission must go forward with it.

Although Commissioner Holmes understood what Mayor Kelley stated, he said that the absent commissioner would not hear the response from the candidates and may not want to vote on the issue.

Given where the Commission is in the process, Mayor Kelley advised Commissioner Holmes that his point is well taken but he would pursue the meeting since it was posted and noticed.

1. **Octavian Spanner**
2. **Roger Hernstadt**
3. **Clarance Patterson**

NOTE: Per the request of Commissioner Holmes, Mr. Clarance Patterson's 2 minute opening remarks of his interview is hereby transcribed in verbatim format.

Clarance Patterson: Thank you Mr. Mayor, Commissioners. My name is Clarance Patterson and I have forty-seven years experience in running just about every department in a local city government. I have worked for Metropolitan Dade County, first black administrator appointed as a director there and that was in 1965. Subsequently worked in the City of Miami Springs as Public Works Director, worked in the City of South Miami as Public Works Director and three (inaudible) with the City of Miami. One was when I served as Assistant City Manager and once in Public Works and once in Solid Waste Department. So I've done just about everything in a city that one can do and just recently of course retired from the City of North Miami as City Manager. There we developed one of the largest Community Redevelopment Organizations in the Southeastern part of the United States. So I'm ready for questions.

***NOTE**: This concludes the verbatim portion of these minutes.*

Upon conclusion of the candidates interviews, Mayor Kelley asked, can the Commission enter into discussion prior to the resolution.

Attorney Geller advised that the Commission can enter discussion prior to the resolution or the resolution can be moved and seconded to enter into discussion as part of the process.

Commissioner Holmes recommended having the discussion prior to bringing the resolution to the floor. He stated that Opa-locka is a tough city in terms of the politics and he is hoping that any person who applied for this job is in the best of health because he wouldn't want to support anyone in the position and the pressure of the job takes a toll on that individual.

He continued by expressing his concerns relating to not having a full Commission present at the meeting; therefore, he would be unable to make a decision on a candidate or vote on the resolution.

Of concern to Commissioner Johnson was the fact that the Commission didn't ask the same questions for each of the candidates. She asked for a legal opinion on the statements made.

Attorney Geller stated that all he heard was that the position is a position that carries a lot of pressure with it, and that as many young people and older people are subject to job related pressure.

Commissioner Johnson stated that there is a resolution on the agenda and she didn't understand what the Commission was doing.

Mayor Kelley explained that the Commission entered into discussion prior to bringing the resolution to the floor so that they may insert a name to vote on and have clarification to any concerns.

Vice Mayor Taylor said she was not so much concerned about the pressure because pressure is how a person handles management of the job as pressure for one individual may not be pressure for another. All three candidates have been in management positions at one time or another; therefore, they have overcome pressure.

She continued by saying that her concern is whether the candidates are the best people to develop the City of Opa-locka and take it to the next level. The pressure comes from the Commission, but can the candidates further help develop the city.

After hearing from the candidates and keeping in mind their plans on managing staff and move various aspects of the city, Mayor Kelley suggested that the Commission move to the resolution and agree on a date to vote on the new City Manager and compensation package.

Vice Mayor Taylor asked for clarification on the purpose for scheduling another meeting.

Mayor Kelley explained that the Commission would have to come back to vote on the compensation package and the date agreed upon previously was the week of January 18th unless the Commission wants to do it on an earlier date. This would allow time to negotiate the compensation package and find out what the person is willing to work for. He recommended that the Commission decide on a candidate and have Commissioner Johnson negotiate terms with the proposed City Manager because she has experience in HR. Commissioner Johnson would come back with the negotiated package, the Commission would meet on the date agreed upon during the week of the January 18th.

Commissioner Holmes requested that the City Clerk transcribe in verbatim format the first two minutes of Mr. Patterson's interview and requested a copy of the video DVD.

5. RESOLUTION:

(A) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO DESIGNATE A TOP CHOICE FOR THE POSITION OF PERMANENT CITY MANAGER; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.C.*

The above resolution was read by title by Attorney Geller.

Attorney Geller pointed out to the Commission that there are two blanks in Section 2 of the resolution that needs to be completed.

For the record, Commissioner Johnson stated that she came into the process with one name and she is leaving out of the process with one, but it would be fair for everyone else to give their input and if she's in agreement then she will vote on it.

Vice Mayor Taylor suggested that the resolution is sponsored by the City Commission and not just one individual, then Section 2 of the resolution would be based on the Mayor's recommendation that Commissioner Johnson would negotiate on behalf of the Commission.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the resolution so that it is sponsored by the City Commission.

There being no discussion, the motion on the amendment passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the resolution filling in the blanks in Section 2 designating Clarance Patterson as the Commission's top choice for appointment as permanent City Manager and authorizing Commissioner Dorothy Johnson to negotiate the terms with the proposed Permanent City Manager, subject to final approval by the City Commission.

Commissioner Holmes reiterated that he could not vote on the resolution because the full Commission was not present; therefore, he would abstain his vote on the resolution.

Attorney Geller advised Commissioner Holmes that he had the privilege of leaving the dais when the vote comes but if he's sitting at the dais, he would have to vote.

There being no further discussion, the motion passed by a 3-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Commissioner Holmes	Out of the room
Mayor Kelley	Yes

6. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Holmes, seconded by Commissioner Johnson to adjourn the meeting at 1:33 p.m.

MAYOR

ATTEST:

CITY CLERK